

Ruling

Plaintiffs' Motion is **Granted in Part and Denied in Part as Moot**. The Court orders PHS to serve amended responses without the objections that were first asserted on February 26, 2026. All responses should be verified no later than five business days after being served. Sanctions will be awarded, but Plaintiff must file a *brief* amended declaration regarding the amount sought for this specific motion.

14. 9:00 AM CASE NUMBER: C24-03466
CASE NAME: MASON BONDI VS. TRENT LOCKETT
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT ATTACH ORDER AND ISSUANCE
FILED BY: BONDI, MASON
TENTATIVE RULING:

Given the late-filed opposition to the Application, on the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 26, 2026**.

15. 9:00 AM CASE NUMBER: C25-01311
CASE NAME: SAYED AMIR EFFATNEYAD VS. NEDA VALIASHRAFI
HEARING IN RE: MOTION TO QUASH SUBPOENA FOR PROTECTIVE ORDER & SANCTIONS
FILED BY:
TENTATIVE RULING:

Plaintiff Sayed Amir Effatneyad has filed a complaint against Defendant Deda Valiashafri for claims arising out of a construction project, including claims for defamation. Defendant alleges that Plaintiff Effatneyad was an unlicensed contractor at the time of the services. Defendant served a subpoena on the Constructor's State Licensing Board (CSLB) and Plaintiff now moves to quash that subpoena.

The filings of both parties contain substantial discussion of extraneous information unrelated to the Motion to Quash. The only question before the court at this hearing is whether the subpoena is valid: whether service was proper and whether it is properly within the Discovery Act.

Plaintiff Effatneyad states that the CSLB records are statutorily confidential and cannot be produced without a court order, a showing of good cause, and narrowly tailored requests. There is no support for this argument, nor is there indication that the subpoena was not narrowly tailored. Given the scope of the claims and relief sought, it seeks information that "appears reasonably calculated to lead to the discovery of admissible evidence." CCP § 2017.010. Defendant has therefore articulated good cause for the subpoena.

Plaintiff also claims that the "Notice of Consumer" was invalid, as it was served by email. While Defendant Valiashrafi disputes that a "Notice to Consumer" was required, Defendant notes that the Notice was mailed, with a *courtesy copy* by email. More than adequate notice was given.

The Motion to Quash is therefore **denied**.

16. 9:00 AM CASE NUMBER: C25-02104
CASE NAME: JENNIE LYNN VALDEZ SALDITOS VS. BENJAMIN D. WEBMAN
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: WEBMAN, BENJAMIN D.
TENTATIVE RULING:

Plaintiff Jennie Lynn Valdez Salditos filed this action against Defendant Benjamin D. Webman seeking a partition of real property. Service of summons and complaint were effected on August 2, 2025. After Defendant failed to file a timely answer, Plaintiff sought and received a default judgment on September 10, 2025. On November 13, 2025, Defendant moved to set aside the default judgment on grounds of excusable neglect. The Court received no timely opposition. The Proof of Service of the Motion was not signed. The Court requires Defendant to file a signed proof of service to confirm that Plaintiff was apprised of this Motion.

Defendant Webman states that he has been distracted by an “ongoing custody battle with his former significant other” as well as duties arising out of his role as caregiver for his father. He also notes that he does not object to a sale of the subject property, but desires to play a role in the process.⁵ Given the relative timeliness of Defendant’s request, the young age of the case, and the lack of opposition from Plaintiff, the Court will contingently **grant** the request upon filing of a *signed* Proof of Service.

17. 9:00 AM CASE NUMBER: C25-02647
CASE NAME: GINO CARUSO VS. ELVECIO PINHEIRO MACHADO FILHO
HEARING IN RE: FOR EXPEDITED ORDER RELEASING DEED OF TRUST & ASSIGNMENT OF RENTS
FILED BY:
TENTATIVE RULING:

Plaintiff Gino Caruso has filed a complaint against Defendant Elvecio Pinheiro Machado Filho (Filho) for torts arising out of the purchase of a property in 2015. Before the Court at present is a Motion for Expedited Order Releasing Deed of Trust and Assignment of Rents. The Court has received no timely opposition. It should be noted, however, that part of Plaintiff’s filing is premised on the failure of Defendant to respond to the Complaint, and the declaration in support of the motion contains the words “Court’s Judgment Against Defendant.” The Court sees in its file a General Denial filed on November 12, 2025, two days prior to the filing of this Motion. The Court will assume that Plaintiff simply was unaware of that filing at the time of submission of this Motion.

Civil Code §2941(b)(1) provides: “Within 30 calendar days after the obligation secured by any deed of trust has been satisfied, the beneficiary or the assignee of the beneficiary shall execute and deliver to the trustee the original note, deed of trust, request for a full reconveyance, and other documents as may be necessary to reconvey, or cause to be reconveyed, the deed of trust.” After review of the

⁵ Defendant’s papers erroneously state that this action was filed December 23, 2024 and the default was entered April 9, 2025. These dates must have been from a different case, as this case was filed July 23, 2025, with default entered September 10, 2025. The Court will look past this error, as it does not affect the decision on this Motion.